

TENTATIVE RULING(S) FOR August 12, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2328644

Martinez vs Taylor

TENTATIVE RULING(S):

Before the Court is Plaintiff's motions seeking to quash third-party subpoenas for business records. Defendant Burroughs opposes and Plaintiff replies.

Statement of Law

Code of Civil Procedure section 1987.1, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an

opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personally identifying information is sought may bring the motion. (Code Civ. Proc., §1987.1, subd. (b).)

No meet and confer effort is required to bring a motion to quash. (Code Civ. Proc., §1987.1.)

Sanctions against the losing party are discretionary, pursuant to Section 1987.2, if the court finds the motion was made or opposed in bad faith or without substantial justification, or if one or more of the requirements of the subpoena was oppressive. (Code Civ. Proc., §1987.2.) When a trial court exercises its discretion to issue discovery sanctions, the court must delineate the specific acts upon which the sanctions are awarded. (*First City Properties, Inc. v. MacAdam* (1996) 49 Cal.App.4th 507, 515.)

Analysis

Defendant Burroughs' subpoenas to West Point Medical Center and Yalina Palomino, MSW, LCSW seeks all medical and billing records, broadly defined, regarding Plaintiff's mental health from January 1, 2018 to the present. Defendant's subpoena to Jin M. Kim, M.D., seeks similar records as well as medical and radiology records relating to Plaintiff's torn meniscus from March 1, 2023 through June 30, 2023. Plaintiff moves to quash on grounds (a) the subpoenas violate Plaintiff's constitutional privacy rights; and (b) the requests for billing records are not reasonably calculated to lead to admissible evidence.

Discovery is relevant if admissible or likely to lead to admissible evidence. (Code Civ. Proc., §2017.010.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement." (*Glenfed Dev. Corp. v. Superior Court (National Union Fire Insurance Company of Pittsburgh, PA)* (1997) 53 Cal.App.4th 1113, 1117; *Norton v. Superior Court (Ein)* (1994) 24 Cal.App.4th 1750, 1760.)

Individuals have a constitutional right of privacy that protects their information. (*Williams v. Superior Court (Marshall's of CA, LLC)* (2017) 3 Cal.5th 531, 552.) A privacy interest is invaded if there is “a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Ibid.*; *Hill v. National Collegiate Athletic Assn* (1994) 7 Cal.4th 1, 35-37.)

When discovery seeks information implicating the constitutional right of privacy, the standard of review will depend on the seriousness of the invasion, i.e., a compelling interest applies if the privacy invasion concerns an interest fundamental to personal autonomy but otherwise a balancing test based on the strength of the privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (*Williams, supra*, 3 Cal.5th at p. 552; *Lewis v. Superior Court (Medical Board of California)* (2017) 3 Cal.5th 561, 572.)

Where a plaintiff alleges a defendant caused mental and emotional ailments, the existence and extent of such mental injuries is “indubitably in dispute.” (*Vinson v. Superior Court (Peralta Community College District)* (1987) 43 Cal.3d 833, 840.) “In addition, by asserting a causal link between her mental distress and defendants' conduct, plaintiff implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress.” (*Ibid.*) Where a plaintiff alleges a defendant caused mental and emotional ailments, the existence and extent of such mental injuries is “indubitably in dispute.” (*Ibid.*)

“[A] patient has a privacy interest in a doctor's medical records pertaining to the patient's physical or mental condition.” (*Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853, disapproved on other grounds in *Williams, supra*, 3 Cal.5th 531.) The patient-physician privilege allows a patient to refuse to disclose a confidential communication between patient and physician, but there is no privilege where the patient has filed an action for personal injuries as to information which relates to the claimed injuries. (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313, citing Evid. Code, §§994, 996.)

In opposition, Defendant Burroughs correctly notes that the complaint repeatedly alleges Plaintiff suffered emotional and physical injuries as a result of Defendants' misconduct, including high blood pressure (¶23); mental and physical pain, anguish, loss of sleep, severe stress, and

anxiety (§§50); loss of appetite and depression-like symptoms (§§70); and decline in health, embarrassment, humiliation, and loss of self-esteem (§§106).

Defendant also provides excerpts from Plaintiff's testimony in a workers' compensation appeals board matter wherein Plaintiff testified the stress from working at Burroughs created problems with his neck, back, leg, hip, and teeth. (Davis Decl., Exh. B, 34:16-23, 36:24-38:3.) Plaintiff first experienced neck problems five years prior to his October 2023 deposition due to stress. (*Id.*, 38:4-7.) He had also experienced neck and arm numbing during the same period, also stress related. (*Id.*, 41:8-14.)

Plaintiff further testified in the workers' compensation matter that he had a prior motor vehicle accident involving his neck and back in 2021. (Davis Decl., Exh. C, 113:22-114:14.) Plaintiff further testified he made a full recovery from the accident, but seemed to acknowledge being seen for issues from the accident as late as April 27, 2022. (*Id.*, 130:24-131:9, 133:22-135:11.) Defendant contends Plaintiff made a workers' compensation claim on May 4, 2022, complaining of neck issues caused by work stress, but the evidence behind this is ambiguous.

Plaintiff further testified he weighs 260 pounds (Davis Decl., Exh. C, 111:23-24) and was diagnosed with hypertension in 2023 but does not take medication for it (Davis Decl., Exh. B, 70:2-13). Plaintiff was diagnosed with sleep apnea within the last five years before his 2023 deposition. (*Id.*, 71:17-23.) Plaintiff had insomnia from 2005 through 2008. (Davis Decl., Exh. C, 155:4-156:18.) Plaintiff testified he started taking medication for diabetes two weeks before the deposition, although his physician had prescribed it for him a year and a half or two years before that. (Davis Decl., Exh. B, 69:6-24.)

Defendant Burroughs asserts the subject subpoena is justified because Plaintiff has claimed both mental and physical injuries in his complaint. In the reply, Plaintiff cites to two responses to form interrogatories (which are not provided to the Court or authenticated) in which he somewhat limits or perhaps even disavows claims of physical injury while maintaining his claims of emotional injury. Plaintiff further argues Defendant Burroughs is trying to use testimony from the workers' compensation case to get access to material that is not relevant to this case.

Plaintiff certainly has a privacy interest in the material sought, but it is overcome because Plaintiff expressly alleges mental and physical injuries resulting from Defendants' misconduct. Plaintiff is entitled to explore alternate sources of stress, of which Plaintiff testified to several in the workers' compensation appeal. Going back to 2018 is reasonable given Plaintiff's testimony that he suffered physical ailments over much of his body as a result of his stress going back that far. The request for billing records, while perhaps more questionable, is also reasonably calculated to lead to admissible evidence. Accordingly, the Court denies all three motions to quash.

Plaintiff's papers suggest he may either has agreed or is willing to reduce the scope of his claims in some respects. This does not alter the analysis on the motions themselves, because Plaintiff's complaint still alleges mental and physical injury. However, the parties have the option of meeting and conferring on a stipulation to reduce the scope of the litigation or damages claimed.

RULING

For all the reasons stated above, the motions are DENIED.

TENTATIVE RULING(S) FOR August 12, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2518395

Hemenway vs City of Fontana

Tentative Ruling:

Before the Court is Plaintiff Robert Hemenway's motion to compel further responses to discovery. Although the motion appears on the Court's docket as three separate motions, it appears only a single motion was filed addressing request for admission, interrogatories, and requests for production of documents. Defendant opposes. No reply has been filed as of 11:00 a.m. on 8/10/26.

Analysis

This motion fails for a myriad of reasons. First, there is no supporting meet and confer declaration (or any declaration)—although the opposition papers indicate there were some unspecified meet and confer efforts. (See opposition, 2:20-21, 5:21-22.) Second, the separate